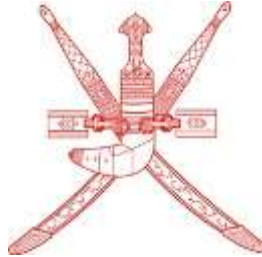


SULTANATE OF OMAN
MINISTRY OF HOUSING AND URBAN PLANNING



**CONSTRUCTION, COMPLETION AND MAINTENANCE OF
PROPOSED (20NOS) HOUSING UNITS AND MAINTENANCE
WORKS FOR THE EXISTING (32) HOUSES FOR THE
MINISTRY OF HOUSING & URBAN PLANNING AT
HALANIYAT ISLAND**

PRIME DOCUMENT

VOLUME 1 of 4

Prepared by:

Main Consultant

Al Manarah Engineering Consultancy

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CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING
UNITS AND MAINTENANCE WORKS FOR THE EXISTING (32) HOUSES FOR THE
MINISTRY OF HOUSING & URBAN PLANNING AT HALANIYAT ISLAND

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SECTION 1
INVITATION TO TENDER

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING
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INVITATION TO TENDER

The **Ministry of Housing & Urban Planning** invites specialized Contractors suitably experienced in the relevant field and registered with The General Secretariat of the Tender Board to submit Tenders for the following:

PROJECT TITLE — CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING UNITS AND MAINTENANCE WORKS FOR THE EXISTING (32) HOUSES FOR THE MINISTRY OF HOUSING & URBAN PLANNING AT HALANIYAT ISLAND.

Tenderers should upload the Tender and all supporting documents to the e-tendering website page with compressed zip folder under the Tender number and project title given below:

TENDER NO:

PROJECT TITLE — CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING UNITS AND MAINTENANCE WORKS FOR THE EXISTING (32) HOUSES FOR THE MINISTRY OF HOUSING & URBAN PLANNING AT HALANIYAT ISLAND.

This Tender shall be submitted as e-tender submission method as follows:

The entire Tender shall be submitted in a compressed zip folder under **TENDER No. (.../.....)**.
CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING UNITS AND MAINTENANCE WORKS FOR THE EXISTING (32) HOUSES FOR THE MINISTRY OF HOUSING & URBAN PLANNING AT HALANIYAT ISLAND.

The above said compressed zip folder should be consisting of the following sub-folders which should be in PDF format and then bind-in all together in order.

1. Sub-folder for Technical Proposal for the **TENDER No. (.../.....)** **CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING UNITS AND MAINTENANCE WORKS FOR THE EXISTING (32) HOUSES FOR THE MINISTRY OF HOUSING & URBAN PLANNING AT HALANIYAT ISLAND.**
2. Sub-folder for Financial Proposal for the **TENDER No. (.../.....)** **CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING UNITS AND MAINTENANCE WORKS FOR THE EXISTING (32) HOUSES FOR THE MINISTRY OF HOUSING & URBAN PLANNING AT HALANIYAT ISLAND.**
3. Sub-folder for Tender Bond for the **TENDER No. (.../.....)** **CONSTRUCTION,**

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING
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**COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING UNITS AND
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All above sub-folders shall be included to the said compressed zip folder and uploaded to e-tender uploading page as per instructions given in the Tender uploading page before the Tender submission date and time specified in the Tender Notice. Tenderers are advised to do uploading of the Tenders as early as possible to avoid delays in e-traffic prior to the specified date and time of Tender submission deadline.

Any error occurring or problem related to uploading in e-tender uploading page, please contact ITA e-tendering help desk contact number 0096824402200 for technical support.

The **Ministry of Housing & Urban Planning** is not bound to accept the lowest Tender and reserves the right to reject any or all Tenders without assigning any reason.

SECTION 2-A

GENERAL INSTRUCTION TO TENDERERS

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The Instructions to Tenderers (General and Particular) will form part of the Contract. Words and phrases are used in these Instructions (unless the context otherwise requires) in conformity with the usage and definitions given in the Standard Conditions of Contract.

1. Introduction

The Ministry of Housing & Urban Planning is representing the Government for the Management of Tenders and selecting and awarding the contract to the best bid by ensuring highest quality of the bidding process.

All the correspondence with regard to the tender shall/must be in writing through the e-tendering website.

The date and time for the return of tenders in accordance with these instructions is as stated in the Tender Notice through the e-tendering website.

2. Tender Documents

The Tenderer shall ensure that all pages of the Tender Documents are complete. In the event that some parts or pages of the Tender Documents are missing, the Tenderer should notify the Ministry of Housing & Urban Planning in writing immediately through the e-tendering website.

Neither the Ministry of Housing & Urban Planning, has any authority to make representation or explanation as to the meaning of the Tender Documents, or as to any other matter or thing concerning the Contract, so as to bind or fetter the judgment or discretion of the Engineer in the exercise of his powers and duties under the Contract except in so far as the Ministry of Housing & Urban Planning may issue a Circular (**Response to Queries**) or **Addendum (Amendments)** amending or explaining the Tender Documents.

3. Documents Confidential

All documents and drawings issued to the Tenderer shall be treated as strictly private and confidential, whether or not the recipient submits a Tender.

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During the tender period, the Tenderer shall not communicate with anyone related to or deemed to be related to the preparation of the Tender unless expressly so directed by the Ministry of Housing & Urban Planning or where such communication shall constitute an enquiry as set down in Section 2-A General Instructions to Tenderers **Clause 4**.

4. Discrepancies, Doubts and Obscurities

Should there be any discrepancy, doubt or obscurity as to the meaning of the Tender Documents or as to anything to be done under the Contract or concerning these Instructions, or any other matter, the Tenderer must set forth in writing such doubt or obscurity and deliver electronically through the e-tendering website not later than twenty-one (21) days before the date fixed for the submission of Tenders. If considered appropriate, a reply in the form of a **Circular** (Response to Queries) or **Addendum (Amendments)** will be distributed through the e-tendering website to all

Tenderers who have purchased the Tender Documents. All Addenda (Amendments) and Circulars (Response to Queries) issued shall be recorded in the Form of Tender.

No additional payment shall be made in respect of works carried out in connection with discrepancies among the various parts of the Tender Documents due to failure of the Tenderer to report the same through the e-tendering website prior to the submission of the Tender as described in above paragraph.

5. Addenda (Amendments) and Circulars (Response to Queries)

Addenda (Amendments) and **Circulars** (Response to Queries) may be issued through the e-tendering website prior to the date of delivery of Tenders for the purpose of amending or clarifying the Tender Documents. Amendments to the Tender Documents subsequent to their issue by the Ministry of Housing & Urban Planning shall only be effected by Addenda (Amendments).

Addenda (Amendments) include amendments to the Tender Documents while Circulars (Response to Queries) includes Ministry of Housing & Urban Planning responses to the queries, in the form of a 'Question and Answer', sent by the Tenderers through the e-tendering website during the Tender period.

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Addenda (Amendments) and Circular (Response to Queries) issued through the e-tendering website to all Tenderers by the Ministry of Housing & Urban Planning shall form part of the Contract and the Tenderer shall take into consideration the contents of such Addenda (Amendments) and Circulars (Response to Queries) in his Tender.

6. No Alterations to the Tender Documents

The Tenderer is not allowed to delete, modify or amend any of the terms or conditions of the Tender Documents. If he desires to state any condition or reservations, he should enumerate them in a letter appended to his Tender, and refer to this letter in the Tender itself.

No alterations in the text of the Tender Documents shall be made except for the filling in the blanks intended to be filled-in. Failure to fully comply with this instruction will result in the rejection of the Tender.

7. Bill of Quantities/Schedule of Prices/Schedule of Remuneration/Fee Proposal

The Tenderer shall complete the Bill of Quantities/Schedule of Prices/Schedule of Remuneration/Fee Proposal in the format given in the e-tendering website. All items in the Bill of Quantities/Schedule of Prices/Schedule of Remuneration/Fee Proposal shall be fully priced in Oman currency up to three decimal places. Each item where no price is entered must be marked NIL in the amount column and shall be deemed covered by other rates in the Bill of Quantities/ Schedule of Prices/Schedule of Remuneration/Fee Proposal.

The unit rates and prices quoted against the items in the Bill of Quantities/Schedule of Prices/Schedule of Remuneration/Fee Proposal shall be fixed for the entire duration of the Contract and shall be for the full inclusive value of the finished work/services/supplies described, including import duties, taxes and all other levy, profit, all obligations and liabilities of every kind arising under the Contract.

The rates and prices inserted in all items in the Bill of Quantities/Schedule of Prices/Schedule of Remuneration/Fee Proposal shall be extended to the amount column, total and carried to the Collection Page and then into Summary Page and the Grand Total including Contingencies to the Form of Tender.

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The correctness or otherwise of the quantities in the Bill of Quantities/Schedule of Prices/Schedule of Remuneration/Fee Proposal shall in no way affect the validity of the Tender.

8. Tender Documents to be completed

The Tenderer shall complete the Form of Tender, the Appendix A to Form of Contract, the Bill of Quantities/Schedule or Prices/Schedule of Remuneration/Fee Proposal, and Appendices, if any, in the format given in the e-tendering website, but not in the Form of Agreement and its appendices, and standard Forms of Bond and shall sign, put date and stamp the Tender Documents, wherever appropriate, with the company official stamp.

The Tender must be signed by the duly appointed principal fully authorized to represent and bind the Tenderer. Any incomplete or improper Tender may be rejected.

9. Submission of Tenders

The Tenderer must submit a Tender for all works in this Contract, and not part of it, as mentioned in the Invitation to Tender.

The Tenderer must upload the Technical and Financial Proposals in the compressed zip folder including sub-folder for Technical Proposal and Financial Proposal separately as mentioned in the Invitation to Tender.

The Ministry of Housing & Urban Planning may, at its discretion, extend the deadline for submission of the Tenders by amending the Tender Documents through the e-tendering website. In such case all rights and obligations of the Ministry of Housing & Urban Planning and Tenderer previously subject to the deadline will thereafter be subject to the deadline as extended.

10. Validity of Tenders

The Tenders shall remain valid for acceptance for ninety (90) days from the date fixed for submission of Tenders. The Ministry of Housing & Urban Planning reserves the right to ask Tenderer for extension of the validity of his Tender and Tender Bond without any change in the prices of the Tender. The Tenderer may refuse to extend the validity of his Tender without forfeiting his Tender Bond.

The Ministry of Housing & Urban Planning shall not entertain any variation due to any currency fluctuation for the submitted Tender during its validity period.

11. Tender without Qualification

The Tender shall be submitted solely on the basis of the Tender Documents issued to the Tenderers and must be free of any qualification. Should the Tenderer wish to submit an alternative offer, such offer must be additional to and completely separate from the unqualified Tender.

12. Tender Bond

The Tenderer shall furnish, as part of his Tender, a Tender Bond in the value of not less than two percent (2%) of the Tender Value. If the Tenderer submits an alternative tender, the two percent (2%) Tender Bond shall be calculated based on the highest Tender Value. The wording of the Tender Bond shall be as per the prescribed Form of Tender Bond included in the Prime Document.

The Tender Bond shall be denominated in Omani currency and shall be obtained from a bank located and registered in the Sultanate of Oman through ESNAD system and valid for ninety (90) days from the latest date fixed for the submission of Tenders. Any Tender not accompanied by a Tender Bond will be rejected.

The electronic Tender Bond shall be uploaded in the ESNAD system by the Tenderer.

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The Tender Bond of unsuccessful Tenderers will be returned on its expiration or after the award of the Contract to the successful Tenderer.

The Tender Bond of the successful Tenderer will be discharged after the Tenderer had signed the Contract and furnished the Performance Bond/Professional Indemnity.

The Tender Bond will be forfeited:

- i) If a Tenderer withdraws his Tender during the period of tender validity specified in the Tender Documents; or
- ii) In the case of a successful Tenderer, if the Tenderer fails:
 - a) to sign the Contract; and/or
 - b) to furnish the Performance Bond/Professional Indemnity.

13. Currency of Contract

The currency of the Contract will be the Rial Omani. In the case of a Tender submitted by an individual or companies abroad, it is permitted to write the prices in foreign currency provided the equivalent Oman currency must be mentioned. Tender in foreign currency without the equivalent Omani currency will be rejected.

14. Language of Contract

All correspondence with the Ministry of Housing & Urban Planning or the Engineer shall be in the English Language. Original documents or copies submitted by Tenderers, which are not in Arabic or English, should be accompanied by English translation.

15. Correction of Arithmetical Errors

The Bill of Quantities/Schedule of Prices/Schedule of Remuneration/Fee Proposal will be examined prior to the signing of the Contract in order to ascertain that the items are correctly extended at the rates quoted. Should any arithmetical error be found, it will be corrected and the Tender Value will be amended accordingly. The Tenderer will be informed of any

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arithmetical adjustment made should the Ministry of Housing & Urban Planning wish to further consider his Tender and he will be required to certify his acceptance.

Arithmetical errors will be corrected as follows:

- a) Where there is a discrepancy between words and figures, the amount in words will govern.
- b) Where there is a discrepancy between the unit rate and the total price that is obtained by multiplying the unit rate and quantity, the unit rate shall prevail and the total price shall be corrected, unless in the opinion of the Ministry of Housing & Urban Planning there is an obvious misplacement of decimal point in the unit rate, in which case the total price as quoted will govern and the unit price will be corrected.

The amount stated in the Tender will be adjusted by the Ministry of Housing & Urban Planning in accordance with the above procedure for the correction of errors and, with the concurrence of the Tenderer, shall be considered as binding upon the Tenderer. If the Tenderer, having been notified that his Tender has been successful, does not accept the corrected amount, the Tender will be rejected, and the Tender Bond shall be forfeited.

16. Post Tender Clarifications

To assist in the examination, evaluation and comparison of Tenders, the Ministry of Housing & Urban Planning may ask Tenderers individually for clarification of their Tender, including breakdown of unit rates. The request for clarification and the response shall be in writing, but no change in the price or substance of the Tender shall be sought, offered or permitted, except as required to confirm the correction of arithmetical errors discovered during the evaluation of the Tenders.

Post Tender Clarifications do not constitute intent to award or award of the Contract. However, in the event that the Tender is accepted Post Tender Clarifications and their related answers will form part of any subsequent Contract as part of the applicable Contract Documents stated herein.

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Any effort by the Tenderer to influence the Ministry of Housing & Urban Planning in the process of examination, clarification, evaluation and comparison of Tenders or award decision including the offering or giving of bribes, gifts, or other inducement, will result in the invalidation of his Tender and the forfeiture of his Tender Bond. The Tenderer must comply with the provisions of Royal Decree No. 112/2011.

17. Tenderer's Breakdown of Unit Rates

The Tenderer shall be required to provide a detailed analysis of the unit rates or prices entered by him in various items of the Bill of Quantities/Schedule of Prices/Schedule of Remuneration/Fee Proposal when requested in writing by the Ministry of Housing & Urban Planning through the e-tendering website during tender evaluation.

18. Costs of Tendering

The Tenderer shall bear all costs associated with the preparation and submission of his Tender, in visiting the Site and obtaining information necessary for preparing and submitting his Tender. The Ministry of Housing & Urban Planning will in no case be responsible or liable for those costs, regardless of the outcome of the tendering process.

19. Acceptance or Rejection of Tenderer's Tender

The Ministry of Housing & Urban Planning is not bound to accept the lowest Tender and reserves the right to accept or reject any Tender, to cancel the tendering process and to reject all the Tenders at any time prior to award of Contract, without thereby incurring any liability to the affected Tenderers or any obligation to inform the affected Tenderers of the grounds for the Ministry of Housing & Urban Planning action. The Ministry of Housing & Urban Planning also reserves the right to reject any Tender **if** the unit rates in the Bill of Quantities/Schedule of Prices /Schedule of Remuneration/Fee Proposal are not written both in words and figures.

The Ministry of Housing & Urban Planning also reserves the right to reject the Tenderer's Tender for the following reasons:

- a). If proven that the performance of the Tenderers in other awarded projects is not good/or poor.**

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b). If the Tenderer has been awarded other projects recently and the Tenderer has no more capacity to take other works.

While the Ministry of Housing & Urban Planning may invite the Tenderer to discuss and/or clarify the Tender, no such invitation or discussion shall in any way be construed as a commitment on the part of the Ministry of Housing & Urban Planning to award a Contract.

20. Governing Laws & Compliance with Labour Regulations and Codes

The Tenderer shall conform to the Laws of the Sultanate of Oman. The laws in the Sultanate of Oman now in force or which may be made from time to time during the period of the Contract shall be the governing laws.

In order to achieve in Country Value (ICV) requirements that can benefit business development, contribute to human capability development and stimulate productivity in the Omani economy, it is necessary to consider the following while submitting the Tenders:

20.1 Omanization Policy

The Tenderer shall conform to the Laws of the Sultanate of Oman and his attention is particularly drawn to the Laws governing employment.

All arrangements which affect the engagement, transport, paying, feeding and housing of staff and other matters in connection therewith shall be subject to the Regulations and Codes of the Sultanate of Oman, now in force or which may be made from time to time during the period of the Contract.

The successful Tenderer must employ a minimum thirty percent (30%) Omanis of requisite skills for all staff categories, technical or otherwise, for the execution of the Works. The daily records of staff and labors deployed for the project shall be submitted to the Engineer.

The Tenderer must comply with the minimum percentages for employing Omani in their organization in accordance with the Regulations and Codes issued by Ministry of labour. Failing to adhere to such requirement shall lead to the rejection of Tenderer's Tender.

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Omanization content in the project and in the company is one of the essential items considered in the evaluation of Tenders.

The successful Tenderer must employ Omani Engineers/Technical fresh graduates for the execution of the Works. The Omani engineers shall be trained, dedicated to work actively part of the organizational/management structure and shall be part of the minimum thirty percent (30%) Omanis as mentioned in the above paragraph. The distribution of the engineers shall be in accordance with the table below which has been filled-up and specified by the Ministry of Housing & Urban Planning, as follows:

LIST OF EXPERT AND OMANI ENGINEERS (FRESH GRADUATES)

Sr. No.	Job Title	Required No.	Educational Qualification
1.	PM	1	20 years, Bachelor's degree
2.	Resident project Engineer	1	15 years, Bachelor's degree
3.	Resident Civil/Material Engineer	1	12 years, Bachelor's degree
4.	Resident Electrical Engineer	1	12 years, Bachelor's degree
5.	Resident Mechanical Engineer	1	12 years, Bachelor's degree
6.	Resident Architecture Engineer (OMANI)	1	8 years, Bachelor's degree
7.	Resident Quantity Surveyor	1	10 years, Bachelor's degree or Diploma
8.	Resident Draftsman (OMANI)	1	10 years, Bachelor's degree or Diploma
9.	Resident (QA/QC)	1	10 years, Bachelor's degree or Diploma
10.	Resident HSE (OMANI)	1	10 years, Bachelor's degree or Diploma

20.2 Subcontractors and SMEs

The Tenderer must identify the works/services that will be sub-contracted to Small-Medium Enterprises (SMEs) and to sub-contractors/suppliers as well. The Ministry of Housing & Urban

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Planning prescribed forms “List of Particulars of Works to Small-Medium Enterprises” (as **per Form No. 3**) and “List of Particulars of Works to sub-contractors/suppliers” (as **per Form No. 4**) shall be filled-up by the Tenderer. The list of proposed works shall be evaluated and approved by the Ministry of Housing & Urban Planning.

The approved proposed works (sub-contracting works) tenders shall be published by the successful tenderer through The General Secretariat of the Tender Board website (Esnad); <https://etendering.tenderboard.gov.om/product/publicDash>.

All subcontractors and SMEs willing to participate in the tender must register at The General Secretariat of the Tender Board as per clause (10) of The General Secretariat of the Tender Board Regulation.

Higher technical evaluation scores shall be given to the Tenderer who is offering a high proportion of local specialized sub-contractors, SMEs, local materials and Omani labour obtained from the region where the project is to be executed.

20.2 (1) Small-Medium Enterprises (SMEs)

The successful Tenderer shall strictly adhere to the Rules for allocating at least ten percent (10%) of the contract to Small and Medium Enterprises (SMEs). SMEs shall be a firm fully owned by an Omani national who has fully dedicated to manage it and registered with the The General Secretariat of the Tender Board as SME. The successful Tenderer shall give priority to the SMEs around the project location.

The tenderer shall submit a confirmation to sub-contract a minimum percentage of not less than ten percent (10%) to Small-Medium Enterprises (SMEs) in the project. If the percentage proposed is higher, then the Tenderer shall state the proposed percentage.

The successful Tenderer must float the stated percentage for SMEs through ESNAD system.

20.2 (2) Subcontractors and Suppliers

All Subcontractors and suppliers who participate to execute the specific works known as “sub-work” in this section must have valid The General Secretariat of the Tender Board registration.

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The successful Tenderer are required to get the approval for any “sub-work” from the Ministry of Housing & Urban Planning through ESNAD system.

21. Trade Names, Manufacturer’s Names and Model Numbers

The Tenderer shall disregard all references to manufacturers, trade names or brand names, model numbers and foreign certification marks that may appear in the Tender Documents. Kite mark and other foreign certification marks and certification for materials and equipment

required from Original Equipment Manufacturers (OEM) are not permissible in this Contract even though mentioned in the specification.

22. National and International Standards

National Standards shall take precedence over international standards in the specification of materials, equipment, and workmanship for the works. Reference numbers of national and international standards such as OS, OES, BS, ASTM, etc. referred to in the Tender Documents shall mean the latest revision of such standards current at the time of Tender.

23. Standard Forms

A set of standard forms prepared by the Ministry of Finance, Financial Affairs is included in the Prime Document. These forms are for the information of the Tenderer and unless otherwise indicated in the Instructions to Tenderers need not be completed.

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SECTION 2-B

PARTICULAR INSTRUCTIONS TO TENDERERS

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The Instructions to Tenderers (General and Particular) will form part of the Contract. Words and phrases are used in these Instructions (unless the context otherwise requires) in conformity with the usage and definitions given in the Standard Conditions of Contract.

1.a) The tenderer has to visit the site and assess the items and quantum of works to be executed for the successful completion and handing over of the project all as per the design drawings, further detailed drawings to complete the work, Schedule of prices and conforming to stipulated standards and should quote accordingly.

The tenderer must visit the Location and obtain, at his own expense, all information necessary for the preparation of the tender. Any neglect or failure on the part of the tenderer to obtain reliable information at site or elsewhere, or on any other matters affecting the execution and completion of the Works of this contract shall not relieve the accepted tenderer from any risks or liabilities or from the responsibilities of completing and handing over the Works within the contract amount.

Tenderer should study the site location, means of access to site and means of access to site. He should be fully aware of the logistics requirements to transport machineries, materials and manpower to and from the site and the logistics plans to be devised due to remoteness of the site. All these aspects should be considered while pricing. All factors which can influence the mobilization, execution, completion and handing over of this project should be considered in his pricing.

b) The tenderer has to review the drawings given in the tender documents during the tendering time and should check for any inadequacies or shortfalls in designs to conform to Ministry of Housing & Urban Planning specifications, standards and regulations based on the site condition. For any inadequacies or shortfalls in designs, the tenderer should consider necessary further designs or detailed designs with approvals from all concerned authorities and should include in his pricing for the design and construction to conform to Ministry of Housing & Urban Planning standards. The shortfalls or inadequacies if any will not entitle the successful tenderer for any extension of time or cost implications and the works should be completed incorporating all detailed requirements if any. Tenderer should consider this and should include for in his quote.

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c) The tenderer should be fully aware that the contract will be a lump sum contract and no cost variations will be applicable. Tenderer has to go through the Schedule of prices items carefully and should check for any missing items and for any error in item descriptions to conform to the requirements and design standards of the concerned authorities. Tenderer has to include for any missing items and for any error in item description in the relevant items given in the schedule of prices. The successful tenderer will not be eligible for any variation for any missing items, for any error in item descriptions and for any additional works due to design requirements and standards.

d) The successful tenderer has to ensure the safety and security of his personnel, villagers, any others and their properties from his activities at site. The successful tenderer has to arrange enough quantity of fuel for the project.

e) A breakdown of the Preliminaries, mobilizing, running cost and de-mobilizing.

The Tenderer has to download the tender documents (except the schedule of prices) from the e-tender website and should take a printout. All the printed documents should then be filled, signed and stamped. These documents should then be uploaded back to the e- tender website along with all the additional documents required under tenderer's enclosure and any circulars and addenda. The schedule of prices should be filled directly in the e- tender website page. The Tenderer shall ensure that all pages of the Tender Documents are complete. In the event that some parts or pages of the Tender Documents are missing, the Tenderer must notify the Ministry of Housing & Urban Planning in writing immediately through the e-tender web site. The Tenderer shall not in any way deface or mutilate the Tender Documents.

All Tender Documents including Addenda and Circular Letters should be filled, signed and stamped and should be uploaded back to the e- tender web site before the stipulated time.

Before submitting the Tender, the tenderer shall read the Tender Documents carefully and satisfy himself of the tasks, risks, obligations, liabilities and responsibilities to be undertaken in the Contract. The tenderer shall acquaint himself with the Standard Conditions of Contract, the laws of the Sultanate of Oman, the site of work, and specification of the works specified in the Tender Documents.

2. Tender Documents

The Tender Documents issued for tendering comprises of:

- a) Prime Document
- b) Specifications
- c) Bill of Quantities/Schedule of Prices and Rates
- d) Tender Drawings
- e) Any Addenda (Amendments) and Circulars (Response to Queries) issued, if any.

3. Site Inspection

The Tenderer must visit the Site and obtain, at his own expense, all information necessary for the preparation of the Tender. He must carefully examine the Tender Documents and satisfy himself as to the tasks, risks, obligations, and responsibilities to be undertaken in the Contract.

Any neglect or failure on the part of the Tenderer to obtain reliable information at site or elsewhere or on any other matters affecting the execution and completion of the Works of this contract shall not relieve the accepted Tenderer from any risks or liabilities or from the responsibilities of completing and handing over the Works.

4. Tenderer's Liability during Site Inspection

Persons, firms or companies proposing to tender and any of their servants or agents will be granted permission by the Employer to enter upon his premises and lands for the purpose of inspection in connection with the proposed Tender, but only on condition that such persons, firms or companies will release and indemnify the Employer and his servants and agents, from and against all liabilities in respect of, and will be responsible for, personal injury (whether fatal or otherwise), loss of or damage to property and any other loss, damage, costs and expenses however caused (whether by the act or neglect of the Employer or his servants or agents or not), which, but for the exercise of such permission would have not arisen.

5. Preparation of Tenders

Before submitting the Tender, the Tenderer shall read the Tender Documents carefully and satisfy himself of the tasks, risks, obligations, liabilities and responsibilities to be undertaken

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in the Contract. The Tenderer shall acquaint himself with the Conditions of Contract, the laws of the Sultanate of Oman, the site of work and specification of the equipment specified in the Tender Documents.

6. Provisional Sums and Provisional Quantity

For pricing work under provisional sums or variations, the unit rates quoted by the Tenderer in the Bill of Quantities/Schedule of Prices and Rates shall be applied without any enhancement. Where such unit rates are not available, the rates payable shall be determined in accordance with the Conditions of Contract.

Items in the Bill of Quantities/Schedule of Prices and Rates marked “Provisional Quantity” and “Provisional Item” shall only be executed if ordered in writing by the Engineer. The rates set out for such items shall be used for the valuation of works so ordered whether the quantities shown are used wholly or in part. If the amount of work ordered by the Engineer exceeds the provisional quantity for the item, the valuation of the excess shall be in accordance with the Conditions of Contract and the rate for that item set out in the Contract shall be deemed applicable to such excess.

7. Day works

Tenderers shall fill in the schedules of Day works rates in the Bill of Quantities/Schedule of Prices and Rates. In case of any additional or substituted works, the Contractor shall be paid for such work under the conditions set out in the Preamble to the Bill of Quantities/ Schedule of Prices and Rates and at the rates and prices affixed in his Tender.

8. No Adjustment of Unit Rates

The attention of the Tenderer is drawn to the fact that this Contract does not include a variation of unit rates (labour, materials and constructional plant) clause. The Tenderer must include in his rates and prices an allowance for any possible increases in the cost of labour, materials and constructional plant which may occur after the submission of the Tender and during the period of the Contract except for increases that may be reimbursable under Clause 13.6 of the Standard Contract for Building and Civil Engineering Works, May 2019 (Rev.01).

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9. Documents accompanying the Tender

In addition to the Tender Documents issued for tendering, it is **mandatory** for the Tenderer to provide and properly include in his submission, the following documents as stated in the check list below. The check list of overall submission shall be submitted as Part 1 of the Technical Submission. Any Tender not accompanied by all the required documents will be rejected.

Part 1: Checklist of overall submission.		
No.	Description	Provided with this Tender document: Yes / No
A- Technical Submission Technical Proposal sub-folder		
The technical document required below shall be uploaded in a compressed zip sub-folder as stated in the Invitation to Tender.		
Part 1: Covering letter, Company profile and Resources and checklist of Overall submission in compliance with the Instructions to Tenderers		
1.1	Company brochures demonstrating capabilities and resources of main Tenderer is submitted.	
1.2	A statement of the Tenderer financial standing.	
1.3	Last three years audited reports.	
1.4	The name and address of his banks, together with the authority for Ministry of Housing & Urban Planning to approach his bankers for relevant information and comment.	
1.5	A list of all Omani and Expatriate Employees employed in the Company, providing the name of the employee, job category, and unit rate per month monthly salary in the prescribed forms included in the Tender Documents. The data submitted as per the Form Nos. 1 and 2	
1.6	Schedule of Deviations, in principle, the Tenderer shall prepare His Tender in full compliance with the conditions and	

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	requirements as stated in the Tender Documents. Such deviations, however, shall in any case be entered item wise into this separate Schedule of Deviations and have to be clearly justified. Reference shall be given to the respective Clause or Sub-clause of the Tender Documents. Hints of a general nature only, without reference to a certain Clause or Sub-clause of the Tender Documents will not be considered and may result in the rejection of the Tenderer's proposal. If no deviations are entered into the Schedule of Deviations, the Tenderer will be considered to have completely accepted, without reservation, all conditions and requirements of the Tender Documents.	
Part 2: Relevant Experience		
2.1	The data submitted as per the Form Nos. 5 and 6 A list of all major works which the Tenderer has completed within the past five 5 years and of all works that are currently Under construction, providing the name of the Client, Consultant, location, value, duration and date of completion. Note: the number of years shall be suggested by the Ministry of Housing & Urban Planning, however, it shall be subject for approval by the Ministry of Housing & Urban Planning.	
Part 3: Project Organisation Structure		
3.1	Organizational Structure for the Project Construction Phase. The proposed Site Organization Chart, giving details of the numbers and categories of the supervisory and technical staff, their qualifications, previous appointments and experience.	
Part 4: Proposed Senior Personnel Nominated to work for this Contract		
4.1	The key personnel for the Main Contractor identified and submitted.	
4.2	The key personnel for any sub-Contractors identified and submitted.	
4.3	The CVs for the key supervisory and technical personnel	

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	submitted.	
Part 5: Proposed Construction Plant, Equipment, labour deployment		
5.1	A. list of the proposed construction plant, together with number and types or capacities indicating those which are owned at the time of tendering and are expected to be free for use on the works; and those which are to be acquired inside and outside the Sultanate of Oman and in each case whether by outright purchase, hire-purchase, or hire. B. All acquired Plant and Equipment listed in their Tender requirement for deployment on the Project must be procured, hired or leased locally, or a combination thereof. Moreover, any needs arising for additional Plant and Equipment to be deployed on the Project by the successful firm or entity, the same shall be procured, hired or leased by the firm or entity from the local market in the Sultanate of Oman. However, the importing of additional Plant and Equipment will only be permitted provided the non-availability of the same in the local market is demonstrated to the satisfaction of the Employer.	
5.2	A. The estimated labour force to be employed in the Works. The proposed labour force must show the proportion of skilled labour, the proportion of expatriate labour and the proportion of Omani staff and labour. B. A statement giving the Tenderer's proposals for location or locations and sizes of base camps, accommodation of contractor's staff and labour force, offices, workshop and stores, etc. together with the layouts and areas of land for the provision of such facilities.	
5.3	A list of the manufacturers' recommended spare parts and special tools giving description, numbers and unit price as required by the Specification and Bill of Quantities/Schedule of Prices and Rates.	
Part 6: Methodology Statement and Compliance to Time Schedule		
6.1	Detailed proposed work methodology.	
6.2	The proposed Construction Program showing in detail the order in which various sections of the Works, including the detailed program of the sub-work of the SMEs , are to be	

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	constructed from the date of receipt of the Engineer's order to commence the Works and the time, which the Tenderer estimates, will be required to complete each section.	
6.3	A forecast of anticipated interim valuations related to the proposed work schedule, taking into account the annual Cash Flow inserted by the Employer in the Appendix A to the Form of Contract.	
Part 7: Safety Programme and Management		
7.1	The Health and Safety Statement and policy.	
7.2	The Tenderer's Health, Safety and Environment HSE manual and details of their HSE plan for the project.	
7.3	The Tenderer's HSE records for the last three 3 years.	
Part 8: In-Country Value ICV - Proposed Omani Sub-contractors, Local Materials, Omanization and Small-Medium Enterprises.		
8.1	Detailed statement on how to enforce the local contents requirement. A statement confirming that the Tenderer shall employ a minimum percentage of thirty percent 30% Omani employees in this project.	
8.2	Participation of Omani Companies in the Project. The Tenderer is required to identify the scope to be executed by local companies.	
8.3	A plan explaining the detailed approach on how to transfer knowledge and develop qualified Omani nationals in the field of this Project.	
8.4	A detailed training program for Omanis employed on the project.	
8.5	A statement confirming that the Tenderer shall sub-contract a minimum percentage of not less than ten percent 10% Small-Medium Enterprises SMEs in this project.	
8.6	A list of any proposed sub-contractors / Suppliers including local firms and Small-Medium Enterprises SMEs as per Form No. 3 , with particulars of the extent of the services/works,	

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	which it is proposed will be undertaken by them. Preferential consideration shall be given to the Tenderer offering a high proportion of local specialized sub-contractors and Small-Medium Enterprises SMEs and Omani employment. Higher Technical score will be given to the Tender who is employing SME's from the Project Location.	
8.7	A. A list of all products and materials to be used in the Work. The details of each product and material shall be given in the prescribed forms: - Form No. 7 - List of all Products and Materials to be used in the Project - Form No. 9 - Material Approval Sheet MAS - Form No. 10 - List of Local Products, Materials and Goods - Form No. 11 - List of Foreign Products, Materials and Goods Sourced from Local Market Omani Suppliers - Form No. 12 - List of Foreign Products, Materials and Goods Sourced from International Market International Suppliers B. Products and materials to be used in the Project must be locally procured.	
Part 9: Quality Control and Quality Assurance		
9.1	The Quality Control and Assurance Statement and policy.	
9.2	Copy of Tenderer's Quality Assurance/Quality Control QA/QC plan including specific plan for the project.	
9.3	Tenderer's International Organization for Standardization ISO accreditation, if any.	
Part 10: Legal Documents and Statements		
10.1	The power of attorney of the person signing the Tender together with a statement giving the names of the persons authorized to sign Agreements on behalf of the Tenderer	

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	including their specimen signatures. International companies shall provide the copy of the Constitution of the Company, Power of Attorney and other relevant legal deeds notarially authenticated by Oman embassy in the Tenderer's country.	
10.2	Confidentiality Statement	
10.3	A statement signifying that a Site inspection has been made and that the tenderer has no doubts or queries regarding the Site, ground conditions, access, permits or permission required concerning the Contract.	
10.4	A statement of unresolved doubts regarding the meaning of anything contained within the Tender Documents and the interpretation relied upon by the Tenderer.	
10.5	A statement in writing certifying that the Bidder has visited the Site and familiarized himself with all conditions which may affect his Tender and that he has no queries on any matter concerning the Contract.	
10.6	A copy of valid The General Secretariat of the Tender Board registration certificate and computer printout document issued by Ministry of Commerce, Industry & Investment Promotion containing the names of the owners of the Company with specimen signatures. International Companies and organizations which are not registered in the Sultanate of Oman may participate in International Tenders provided that they shall register in accordance with the rules in the Sultanate within thirty 30 working days from the date on which they are notified of the success of their Tenders.	
10.7	Full and valid registration documents issued by Ministry of Commerce, Industry & Investment Promotion and The General Secretariat of the Tender Board in the specified category and grade for Omani Joint Venture Company and Subcontractor. <i>for joint venture company only.</i>	
10.8	In the case the Tenderer is a joint venture, an original copy of the signed joint venture agreement indicating the lead company of the joint venture.	
10.9	A statement tender fully comply with Tender Laws and Regulation issued by RD 36/2008.	

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Part 11: Other information to be provided by the Tenderer as per the Tender Documents		
11.1	Any other information.	
B- Financial Submission Financial Proposal sub-folder		
	The Financial and Commercial document required below shall be uploaded in one sub-folder separate from the technical submission and shall be organized in the following order:	
1	Duly signed and completed Letter of Tender, the Appendices to the Letter of Tender, and the Price Proposal.	
2	Tender Bond in the amount of not less than one percent 1% of the highest Tender Value, valid for Ninety 90 days, obtained from a locally registered insurance Company or Bank. This shall be uploaded in the Tender Bond sub-folder with the original Tender Bond to be delivered by hand to the Ministry of Housing & Urban Planning as mentioned in the Invitation to Tender.	
3	The Bills of Quantities/Schedule of Prices and Rates/Fees, etc.	
4	Any other financial issues.	

9. Tenderer's Technical Submission

Tenderer's Technical submission will form the basis for carrying out the technical evaluation of bids submitted. Therefore, it is the responsibility of Tenderers to ensure the submission of all required information and in the format specified in this tender document as per **Section 2-B Particular Instructions to Tenderers Clause 8 Documents accompanying the Tender**. Any submission that is not complete or the required information is not submitted in the format specified will be disregarded.

The technical document required in **Section 2-B Particular Instructions to Tenderers Clause A** above shall be uploaded as mentioned in the Invitation to Tender. The technical submission shall be organized in the following order with separate sub-folders.

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**Part 1: Covering letter, Company profile & Resources & checklist of Overall submission
in compliance with the Instructions to Tenderers.**

Part 2: Relevant Experience.

Part 3: Project Organization Structure.

Part 4: Proposed Senior Personnel Nominated to work for this Contract.

Part 5: Proposed Construction Plant, Equipment and labour deployment.

Part 6: Methodology Statement & Compliance to Time Schedule.

Part 7: Safety Programme and Management.

**Part 8: In Country Value - Proposed Omani Sub-contractors, Local Materials,
Omanization and Small-Medium Enterprises.**

Part 9: Quality Control & Quality Assurance.

Part 10: Legal Documents & Statements.

**Part 11: Other information to be provided by the Tenderers as per the Tender
Documents.**

If the project to be carried by more than one Contractor/joint venture or sub- Contractor then
each sub-Contractor should submit the forms for **Part 1, Part 2 and Part 10.**

10. Performance Bond

The successful Tenderer will be required to provide a Performance Bond (as defined in Clause 4.2 of the Conditions of Contract and as amended by Royal Decree 36/2008 to the value of twenty percent (20%) of the Contract Value, obtained from a locally registered Bank and valid for the whole of the Contract and Defects Liability Period. The Performance Bond will be retained by the Employer during the Contract and Defects Liability Period and will be returned to the Contractor upon the satisfactory completion of the Defects Liability Period. The wording of the Performance Bond shall be as per the prescribed "Form of Performance Bond" included in the Prime Document.

Failure to execute the formal contract and to provide a Performance Bond or indemnity bond within this period will cause the Tender Bond to be forfeited.

11. Documents available for Inspection by Tenderers

Any result of tests carried out on materials, reports on soil samples or any other information which may be made available for inspection by the Tenderers do not form part of the Contract and no guarantee is given as to their accuracy, nor is it to be inferred that the conditions indicated by this information are representative or may be encountered in carrying out the Contract and the Tenderer must satisfy himself as to the true conditions.

12. Insurances

The successful Tenderer will be required to obtain all the insurances stipulated in the Conditions of Contract and to lodge them with the Employer or to furnish an indemnity bond from a bank registered and located in the Sultanate of Oman, indemnifying and saving harmless the Employer from loss which may be caused to him by his defaults to obtain insurance accordingly, within seven (7) days of receipt of Engineer's order to commence the Works.

13. Materials and Products for the Work

Products and materials to be used in the Project must be locally procured. The Tenderer is required to give priority to local products and materials to be used in the works up to a price difference of not more than ten percent (10%) over similar imported products and materials provided such products and materials conform to the requirements of the Contract Specifications.

The Tenderer shall be responsible for developing his sources of materials (except where any particular source is specified, but no guarantee can be given as to the availability of materials of suitable quality and quantity). The Tenderer in making his arrangements for obtaining materials will be expected to comply with any statutory requirements and will be deemed to have acquainted him with these requirements.

The successful Tenderer is required to insure the materials and goods to be used in the Works with insurance companies registered in the Sultanate of Oman.

14. Government Permits

The successful Tenderer shall be required to obtain all necessary Government permits in connection with the Works and pay all charges and fees in connection thereto.

15. Use of Provisional Sum, Contingencies & Dayworks

All sums set out in the Bill of Quantities/ Schedule of Prices and Rates which shall be stated to be Provisional Sum, Dayworks or Contingencies shall be used at the direction of the Engineer; if not used, either wholly or in part, the amount not used shall be deducted from the Contract Price. No claim by the Contractor against such deduction will be entertained.

16. Alternative Tenders

The tender shall be submitted solely on the basis of the Tender Documents issued to the Tenderers and must be free of any qualification.

Should a Tenderer wish to submit for consideration of the Ministry of Housing & Urban Planning an alternative design, method of construction or other variation for part or the whole of the works, the Tenderer may submit an Alternative Tender subject to a valid tender being presented in accordance with Section 2-A General Instructions to Tenderers Clause 9 hereof; such Tender must be additional to and completely separate from the unqualified tender.

The Tenderer submitting an Alternative Tender shall provide and upload all information necessary for a complete evaluation of the alternative including design calculations, detail drawings, technical specifications, breakdown of prices, proposed construction methodology, and other relevant details which give effect to the alternative. This folder shall be additionally marked as "All Information for the Alternative Tender"

The Tenderer shall complete a new Form of Tender and Appendix to the Form of Tender clearly marked and uploaded as applying to the Alternative Tender, with the folder additionally marked as "New Form of Tender and Appendix to the Form of Tender (Alternative Tender)".

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The Ministry of Housing & Urban Planning at its own discretion will decide whether the Alternative Tender will be considered and evaluated or rejected.

A written statement of the Tenderer shall accompany any alternative tender that he shall, before entering into a contract for such an alternative, provide the Ministry of Housing & Urban Planning with indemnity insurance for the total Contract Value to cover his responsibility for the design for a period of 10 years after the Defects Liability period.

17. The filled Tender Documents shall be uploaded back to the website without any re-arrangement in any way except as instructed herein. All requested documents issued addenda and circular (if any) should be submitted with the Tender. Except as otherwise expressly provided for in the Tender Documents, the tenderer shall insert the requested documents detailed hereunder.; under no circumstances shall Tender Documents be otherwise altered, or other documents inserted.

Section 3

Evaluation System

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1. Opening of Tenders (One-envelope Tender)

Tenders will be opened at the time and date specified in the Invitation to Tender at the offices of the Ministry of Housing & Urban Planning. Any Tender received after the time and date fixed for submission of Tender will be rejected whatever caused the delay. **The Technical and Financial Proposals will be opened both at the same time.**

2. Tender Evaluation Criteria

Ministry of Housing & Urban Planning will evaluate and compare the Tenders previously determined to be substantially responsive as per the following:

The Technical Evaluation will be as follows:

A. Technical Evaluation

The evaluation of the technical proposal will be based on the following criteria.

Ministry of Housing & Urban Planning will evaluate and compare the Tenders previously determined to be substantially responsive in two stages. The first stage will be an evaluation of the Tenderers' technical proposals. Those tenders which are technically qualified will be carried forward to the second stage of the evaluation. The second stage of the evaluation will be based on the tenderers' financial proposals.

The Tenderer should score above a certain cut-off point of the total possible points for the Technical Evaluation in order to consider the Tender as compliant, meeting all the requirements and accordingly as "Technically Acceptable". Any Tenderer that does not pass the set threshold point of the total possible points for the Technical Evaluation will be disqualified and his offer is considered as "Technically Not Acceptable".

The Technical Proposals will be evaluated based on a set of evaluation criteria and as provided in the below table:

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A) Technical Evaluation

Ministry of Housing & Urban Planning will evaluate and compare the Tenders previously determined to be substantially responsive in two stages. The first stage will be an evaluation of the Tenderers' technical proposals. Those tenders, which are technically qualified, will be carried forward to the second stage of the evaluation. The second stage of the evaluation will be based on the tenderers' financial proposals. The Tenderer should score above a certain cut-off point of the total possible points for the Technical Evaluation in order to consider the Tender as compliant, meeting all the requirements and accordingly as "Technically Acceptable". The cut-off point will be 50% and an overall threshold 70% of the Technical Evaluation. Any Tenderer that does not pass the set threshold point of the total possible points for the Technical Evaluation will be disqualified and his offer is considered as "Technically Not Acceptable".

ITEM	DESCRIPTION	SCORE	
		MAXIMUM ITEM SCORE	MAXIMUM CATEGORY SCORE
T1	EXPERIENCE REQUIREMENT		
	1. Experience in constructing similar to the scope of this project completed in the Last Five (5) years while acting as the Main Contractor with a minimum project value of 1.5 million Omani Rial. Only the best Four (4) projects will be considered for evaluation. Client References for each project shall be provided. The Ministry of Housing & Urban Planning shall have the right to contact the latter for more information if required.	15	20
	2. Performance of the Tenderer in the completed project in Oman. Tenderer shall include completed projects in constructing similar to the scope of this project for the evaluation. The mark will be equally distributed for the quality of work and for the timely completion of the project delay.	5	
T2	STAFF REQUIREMENT		
	1. The proposed organization covers all project activities management and supervision requirements.	10	25
	2. Qualification and experience of the proposed technical and supervisory staff for the project in details (CVs & certificates).	15	

**CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING
UNITS AND MAINTENANCE WORKS FOR THE EXISTING (32) HOUSES FOR THE
MINISTRY OF HOUSING & URBAN PLANNING AT HALANIYAT ISLAND**

T3	CONSTRUCTION REQUIREMENT		
	1. Proposed methodology statement in details.	10	25
	2. Compliance to time schedule shown as diagram in details.	10	
	3. Proposed constructional plant and equipment/owned by company.	5	
T4	GENERAL RULES		
	1. Proposed Omani sub-contractors, local materials/products and local labour (Proposed 30% Omanization program).	1	5
	2. List of 10% works to Proposed local SME contractors.	1	
	3. Safety programme and Management and Health Environmental Procedures.	1	
	4. Quality Control and Quality Assurance.	1	
	5. Completeness and quality of overall Tender submission.	1	
T5	Financial liability. For years 2023,2022,2021	25	
TOTAL SCORE FOR TECHNICAL PROPOSAL			100

Financial liability	For years 2023,2022,2021
1.25 and more	Very Good
less than 1.25 and above 1.0	Good
Equal to 1.0	Pass
less than 1.0	Fail
Equation	$\frac{\text{Current Assets - Inventory}}{\text{Current Liabilities}} = \text{Ratio}$

ITE M	DESCRIPTION	MAXIMUM SCORE
T1	TOTAL OF FINANCIAL CAPABILITY SCORING	30

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B) Awarding of the Tender

The Contract will be awarded to the technically qualified Tenderer whose Tender has the lowest price, who is substantially responsive to the requirements of the Tender Documents and who satisfies the post-qualification requirements of the Instructions to Tenderers and all Tender Documents.

SECTION 4

SCOPE OF WORKS

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING
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INVITATION TO TENDERER: - The Ministry of Housing & Urban Planning invites suitable tenderers with sufficient experience in the same field, meeting the stipulated requirements, to participate in this tender for carrying out this work.

SHORT DESCRIPTION OF WORKS:

- A. CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED 20NOS HOUSING UNITS FOR THE MINISTRY OF HOUSING & URBAN PLANNING AT HALANIYAT ISLAND** including septic tank and soak pit, compound wall including gate and all associated electrical, plumbing, drainage services and interlock works, all as shown in the drawings and specified in the specifications.
- B. MAINTENANCE OF EXISTING (32NOS) HOUSING UNITS FOR THE MINISTRY OF HOUSING & URBAN PLANNING AT HALANIYAT ISLAND** including septic tank and soak pit, compound wall including gate and all associated electrical, plumbing, drainage services and interlock works, all as shown in the drawings and specified in the specifications.
- C. STORMWATER NETWORK WITH DRAINAGE AND FLOOD PROTECTION WITH ASPHALT ROADS AND CULVERTS**

All to be quoted accordingly against the items mentioned in the SCHEDULE OF PRICES. The approximate Plinth area of housing units and the number of housing units are as follows: -

NOTE: -

* Necessary temporary fencing should be erected around the site to the approval of the concerned authorities.

*All MAS should be submitted during mobilization or at least 45 days before it is required to order. Ministry of Housing & Urban Planning or engineer will not be responsible for delay in approval due to late submissions.

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING
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For Construction, completion and Maintenance of Proposed 20 No's Housing Units, the following will be scope of work (not limited too):

1. Contractor must hire a boat on his own cost during the project period.
2. General Requirements Including the Transportation for Staff and for Material.
3. Site Works including Demolishing and removing the existing houses
4. Concrete Works.
5. Masonry Works.
6. Metal Works.
7. Wood Works.
8. Thermal and Moisture Protection.
9. Doors and Windows.
10. Finishing Works.
11. Mechanical Engineering Installations.
12. Electrical Engineering Installations.
13. Plumbing Engineering Installations.
14. Supply and Installation of all required utility networks (water, power, sewer, drain, telephone, data, etc.)
15. Supply and Installation of 20 nos pre-fabricated cabin with weatherproof roof, two bedrooms, two toilets, one kitchen including bed foundation and meet the standards/specification in the Halaniyat Island.
16. Maintenance for all the constructions for one year.

Note: The client may delete any of the items from the BOQ of prices before awarding the contract or during the execution of the project. In case of any deletion of items from the scope of works by the client to any extent, no profit share will be applicable to the contractor for the deleted portion.

For Maintenance of Existing 32 No's Housing Units, the following will be scope of work (not limited too):

1. Contractor must hire a boat on his own cost during the project period.
2. Contractor to Review the site report and watch the videos carefully and attend the site visit to understand the project.
3. General Requirements Including the Transportation for Staff and for Material.
4. Site Works.
5. Concrete Works.
6. Masonry Works.
7. Metal Works.
8. Wood Works.
9. Thermal and Moisture Protection.
10. Doors and Windows.
11. Finishing Works.
12. Mechanical Engineering Installations.
13. Electrical Engineering Installations.
14. Plumbing Engineering Installations.
15. Supply and Installation of all required utility networks (water, power, sewer, drain, telephone, data, etc.)
16. Supply and Installation of 32 nos pre-fabricated cabin with weather proof roof, two bedrooms, two toilets, one kitchen including bed foundation and meet the standards/specification in the Halaniyat Island.
17. Maintenance for all the constructions for one year.

Note: The client may delete any of the items from the BOQ of prices before awarding the contract or during the execution of the project. In case of any deletion of items from the scope of works by the client to any extent, no profit share will be applicable to the contractor for the deleted portion.

TEMPORARY FACILITIES FOR ENGINEER

SUMMARY

This section covers the requirements for permanent construction facilities and services for the Engineer, including but not limited to the following:

Accommodations for Engineers and client
Telephone services
Transportation (only temporary)
Site office for use by the Engineer
Measuring and testing instruments
Project signs

These facilities shall be provided within the mobilization period and shall be in accordance with the specifications and the Contract Documents. Location of permanent facilities shall be proposed by the Contractor and approved by the Engineer.

COST

All cost for supply, installation, maintenance and removal of the necessary facilities and services shall be at the Contractor's expenses and are included in the Contract Price.

EXECUTION

ACCOMMODATIONS FOR ENGINEERS AND CLIENT

The Contractor to Provide on his own cost during the project duration:

- 1- Family accommodation for the Engineer contains of Two bed Rooms and Salah and two toilets and a kitchen all fully furnished with new furniture.

Including and not limited to:

- All bills and rent (electrical bill – water – gas – internet - ... etc)
- All maintenance are included
- TV connected with satellite.
- Food as per the engineer requires with a cook who will cook the three main meals

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- 2- Single accommodation for the Engineer contains of one bed Room and Salah and one toilet and a kitchen all fully furnished with new furniture.

Including and not limited to:

- All bills and rent (electrical bill – water – gas – internet - ... etc)
- All maintenance are included
- TV connected with satellite.
- Food as per the engineer requires with a cook who will cook the three main meals

- 3- Family accommodation for the Engineer contains of Two bed Rooms and Salah and two toilets and a kitchen all fully furnished with new furniture.

Including and not limited to:

- All bills and rent (electrical bill – water – gas – internet - ... etc)
- All maintenance are included
- TV connected with satellite.
- Food as per the engineer requires with a cook who will cook the three main meals

SITE OFFICE FOR THE USE OF THE ENGINEER

Provide/construct elevated from ground prefabricated field office and car shed for the Engineer with lockable entrances and necessary ground and roof water tanks, for water storage with an automatic electric pump.

Make necessary arrangements for the disposal of sewage water including the construction and installation of septic tanks, soak away pits, pipelines or whatever may be required to provide a good working sewage system.

Locate field office and shed for easy access.

Furnish, equip, air-condition, light, clean and maintain a site office for the Engineer. The Site office shall comprise office rooms and meeting rooms, completed with a kitchen and toilet and shower facilities. The Contractor shall furnish and pay for utilities and services including cleaning maintenance, janitorial and watchman for the offices. Offices shall be when finished a weather tight insulated construction with operable windows of glazed sashes and screen shutters.

Lockable doors, resilient tile flooring, concealed conduits for electrical wiring, fluorescent light fixtures capable of maintaining an acceptable illumination, two electrical outlets placed at approximately 300 mm above the floor and an air-conditioning unit of an acceptable BTU

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capacity shall be provided for every room.

All inner and outer space of the Site office shall be lighted and shall have a main circuit breaker at the electrical feeder cable.

Provide a telephone set, connected to the PABX, in each office disk and meeting room with a list of important telephone numbers:

Police and fire departments

Ambulance service

Contractor's main office

Engineer's office

Employer's office

Sub-contractors' principals-in-charge

Kitchen, mess room and washrooms shall be provided with hot and cold water.

Covered car parking areas shall be provided adjacent to the offices of a size suitable for the Employer's and Engineer's cars.

The office shall be kept clean and orderly for use and shall remain on Site until the Engineer instructs it to be removed.

The site office shall comprise the following rooms:

Two (2) office rooms 15 m² area each

Two (2) office rooms 20 m² area each

One (1) Meeting room 30 m² area

One (1) storage room for samples 20 m² area

Kitchen and mess rooms

Office Room: The Contractor shall furnish and equip each office room as follows to the Engineer approval:

For each office room 15 m²:

One (1) standard office desks with 4 drawers with arm chair

Two (2) office chairs

Two (2) closets with 6 adjustable shelves and lockable door with 2 keys

For each office room 20 m²:

Two (2) standard office desks with 4 drawers with arm chair

Six (4) office chairs

Six (4) closets with 6 adjustable shelves and lockable door with 2 keys

Meeting Room: The Contractor shall furnish and equip each meeting room as follows to the Engineer approval:

One (1) meeting table

Twelve (12) chairs

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One (1) white board (for typing)

Storage Room and Samples

One (1) standard office desks with 4 drawers with arm chair

Two (2) office chairs

Complete shelving system for the whole room

One (1) computer as per sub-close 3.1.1 above

Kitchen and Mess Room

One (1) kitchen type cabinet with table top and storage

One (1) table 1.5 x 0.9 m with 6 chairs

One (1) electric-coffee pot, 220 volts

One (1) tea and coffee service for 6 persons

One (1) electric kettle, 220 volts

One (1) water cooler including paper-cup supply

Wash Rooms: Provide separate facilities for male and female personnel, each comprise the following:

Two (2) pedestal W.C

Two (2) wash-hand basin with hot and cold water

One (1) first-aid cabinet with a mirror

Laptops

The contractor to provide 4 Laptops with the following with an attached LAN network:

- One (1) LAN connecting all laptops supported by ADSL facility (General Server)
- one (1) Laptop with the following specification:
- Intel Core i9 processor with 2.5GHz speed and 4MB cache memory at least
- 16GB DDR3 RAM
- Graphic display card with 4GB dedicated Graphic RAM at least
- 15.6" LED, antiglare, HD display screen
- 1TB hard disk drive
- Super Multi DVD R/W
- WIFI and 10/100/1000 Ethernet LAN connections
- USB, VGA out, HDMI and audio ports
- Windows 11

Hub 10/100 8 port min.

- Latest Version of S/W Programs: Win 2K, office 2K, primavera and AutoCAD
- Two CD writers (built-in)
- Two DVD external

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One digital camera with the following specification:

- Optical zoom 32 x
- 14 mega pixels
- 1 card 8 GB RAM
- Doc station
- One color laser Multifunction printer (Printer/Scanner/photo copier)
- One A3 color printer

General: Provide the following:

One Personal Computers (PC) with the following configurations:

- Intel Core i9 processor with 2.5GHz speed and 4MB cache memory at least
- 16GB DDR3 RAM
- Graphic display card with 2GB dedicated Graphic RAM at least
- 19" LCD Monitor
- English/Arabic Microsoft Keyboard + Optical Mouse (USB) + Dust Covers
- Speakers
- DVD RW
- All PC's equipped to be connected to computer network
- Latest Version of S/W Programs: Win 2K, office 2K, primavera and AutoCAD Internet Facilities

Two (2) flash memory 8.0 GB

One (1) fax machine (laser)

One (1) LAN connecting all PC's supported by ADSL facility (General Server)

One (1) A3 and A4 ink-jet printer color, with min. resolution 600 dpi in color mode

One (1) Digital camera for the Engineer's use with the following specifications:

- Optical zoom 6 x
- 7 mega pixels
- 1 card 1 GB RAM
- Doc station
- Latest Version of Software and Manuals for all programs including, but not limited to: Windows 7, Office 2010 (licensed for both) Primavera and AutoCAD

Supply paper, soap and towels for toilet

Supply drinking water, tea, coffee and the like

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Supply all required stationary including, but not limited to: paper for printer, photo copier papers, toner, CD's, etc

TELEPHONE AND FAX SERVICES

Provide four (4) mobile telephones including payable lines for the Engineer.
The telephone must be compatible with WhatsApp and Internet with good quality

TRANSPORTATION

The Contractor shall provide for the sole use of the Engineer and his staff the following:

Two (2) cars for 4 passengers including air-conditioned, not less than 1600 cc with safety air bags + automatic gear transmission (Model not less than 2021)

All expenses related to these vehicles including passengers insurance, drivers, fuel and maintenance shall be borne by the Contractor.

SURVEY, MEASURING AND TESTING INSTRUMENTS

The Contractor shall provide and maintain for the sole use of the Engineer's Representative the instruments listed hereunder, but not limited to:

One (1) total station with all accessories as recommended by manufacturer

360 circle theodolite reading to 20 seconds together with tripod and case

One (1) quick setting level together with tripod and cases

One GPS with extra batteries.

Two (2) telescopic (deployable) aluminum alloy level staffs 4.00 m long with center bulb, graduated in meter and centimeters.

Steel tapes 5,100 m and 50 m length

Other instruments required for measurements in all disciplines related to the project to be used by the Engineer shall be also provided by the Contractor.

PROJECT IDENTIFICATION AND SIGNS

The Contractor shall supply, erect and maintain in a proper condition through the full duration of the Contract an illuminated project identification signs at the locations provided by the Engineer. The text shown by the sign shall be in equal fonts and in the following sequence, the names of the Project, the Employer, the Engineer, the Consultant and the Contractor. The signs shall be of 8.0 m width and 8.0 m high. Minimum number of project signs shall be one (1).

The fixing of the sign shall be by means of galvanized steel tubing 100 mm diameter fixed in the ground by concrete blocks and erected at least 4 m clear of the ground.

The Contractor shall provide for the Engineer's approval shop drawings for the construction, erection, the color and the text used in the identification sign.

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Signs shall be constructed of a metal frame designed to withstand a minimum wind load of 120 kg/m², faced with a wire fabric on which the written information shall be fixed.

The sign shall be painted two coats with a durable reflective paint. All writings shall be in Arabic and English. The lettering of the sign shall be to a design approved by Engineer. Install signs to inform public and persons seeking entrance to project.

Provide temporary signs to provide directional information to construction personnel and visitors. Support signs on posts of preservative-treated wood or steel.

REMOVAL OF FACILITIES

As soon as reasonably practical remove these facilities from the Site and where the Work is performed when no longer required in the Engineer's opinion. Clean up, restore and reinstate areas occupied by the facilities to a condition acceptable to the Engineer.

Materials and facilities that constitute these facilities are the Contractor's property.

END OF SECTION

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING
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SECTION 5

CONDITIONS OF CONTRACT

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING
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Conditions of Contract

The Conditions of Contract shall be those contained in the Sultanate of Oman Standard Contract for Building and Civil Engineering Works, **May 2019 (Rev.01)**, prepared by the Ministry of Finance, Financial Affairs, Muscat.

Tenderers are deemed to have a copy of the Standard Documents at tender stage and to be aware of and to have understood the contents thereof.

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SECTION 6

STANDARD FORMS

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING
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Letter of Tender

Short Description of Works

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS)
HOUSING UNITS AND MAINTENANCE WORKS FOR THE EXISTING (32) HOUSES FOR
THE MINISTRY OF HOUSING & URBAN PLANNING AT HALANIYAT ISLAND.

Directions:

Tenderers are required to fill in the blanks in this Letter of Tender

To: H.E. the Chairman,

Ministry of Housing & Urban Planning

P.O. Box:173,

Al Khuwair, PC 100

Sultanate of Oman.

1. We are having examined the Instructions to Tenderers, Contract Agreement, Conditions of Contract, Drawings, Specification, Schedule of Prices*, the Addenda listed hereunder for the execution of the above-named Works. We, the undersigned, offer to execute, complete the Works and remedy any defects therein in conformity with the Tender which includes all the above documents for the sumRiyal Omani (R.O.) or of the sum (.....) in other currency based on fixed rate of R.O =Exchange rate, or any other sum as may be ascertained in accordance with the above Conditions.

2. We undertake that if our Tender is accepted, we will provide the specified Performance Bond according to the terms specified by you, from a locally registered Insurance Company or Bank in accordance with Sub-Clause 4.2 of the Conditions of Contract, to be jointly and severally bound with us in the sum of (20%) of the Accepted Contract Amount.

3. We agree to abide by this Tender for a period of 90 days from the date fixed for receiving same, and it shall remain binding upon us and may be accepted at any time before the expiration of this period.

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING
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4. We understand that this Tender, together with Letter of Acceptance hereof, shall constitute a binding agreement between us, until the formal Contract is prepared and executed.
5. We understand that you are not bound to accept the lowest or any other Tender.
6. We knowledge receipt of the following Addenda: *

Reference number

.....

Date:

.....

and confirm that we have taken account of them in our Tender.

7. *We confirm that we have an Agent/s for the provision of spare parts, Maintenance Services and repair who are:

Name

.....

.....

Address

.....

.....

Agency Registration Number

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING
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.....

In the event we do not have Agents in the Sultanate of Oman for the spare parts and maintenance Services to be provided, we guarantee, to provide spare parts and the maintenance Services for a period of 10 years. A list of quantity of these spare parts and the types of maintenance services, is enclosed with this Tender, along with related prices and cost.

Name.....

Signature.....

In the capacity of.....

Duly authorized to sign tenders for and on behalf of

.....

Address.....

Date.....

Witness Name.....

Signature.....

Address.....

.....

Occupation.....

Date.....

Appendix to Letter of Tender

Constitution of the company

1. International Companies

- a) The Contractor shall prior to the signing of the Contract Agreement submit notarized authenticated copies of the original documents defining the constitution of the Company, powers of attorney and other relevant documents. In the case of a Partnership or Firm these documents shall be dully authenticated summary of the deed or other documents. These documents shall also show persons who are authorized to sign on behalf of the company and the scope of the authorization, and persons directly responsible for the due execution of such contracts and can give valid receipts together with specimens of their signatures.
- b) An overseas power of attorney of a foreign signatory to the Tender shall have been endorsed by an approved Omani authority in that country (such as an Embassy).
- c) Contractor intending to undertake the Contract jointly or in association with another firm or firms including firms or persons acting in an advisory or consultative capacity shall submit the Agreement signed between them, showing how the contract commitment will be undertaken and the exact relationship between each of the parties, and the party who represent the others parties.
- d) The Contractor shall also submit the name and address of the Contractor's agent registered in Sultanate of Oman (if applicable).

2. Omani Companies

The Contractor shall prior to the signature of the Contract Agreement submit copy of the registration certificate with Ministry of Commerce, Industry and Investment Promotion, The General Secretariat of the Tender Board and Oman Chamber of Commerce and Industry. These documents shall also show those persons authorized to sign on behalf of the company and the scope of the authorization, and persons directly responsible for the due execution of such contracts and can give valid receipts together with specimens of their signatures.

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CONTRACT AGREEMENT

THIS AGREEMENT made this day.... ofYear202... BETWEEN MINISTRY
OF HOUSING & URBAN PLANNING hereinafter called “the Employer” of the one part, and
.....
hereinafter called “the Contractor” of the other part.

WHEREAS the Employer is desirous that certain works should be executed:
CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS)
HOUSING UNITS AND MAINTENANCE WORKS FOR THE EXISTING (32) HOUSES FOR
THE MINISTRY OF HOUSING & URBAN PLANNING AT HALANIYAT ISLAND.
and has accepted a Tender by the Contractor as summarized at Appendix B “Summary of
Contract Value” for the execution and completion of the Works and the remedying of defects
therein.

NOW THIS AGREEMENT WITNESSETH as follows:

1. In this Agreement, words and expressions shall have the same meaning as are respectively
assigned to them in the Conditions of Contract hereinafter referred to.

2. The following documents shall be deemed to form and be read and construed as part of this
Agreement:

The Letter of Acceptance dated.....

The Letter of Tender dated.....

The Conditions of Contract

The Drawings

The Specification

The Schedule of Prices*

.....
.....

*Delete where not applicable

**Other additional documents as require

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING
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3. In consideration of the payments to be made by the Employer to the Contractor as hereinafter mentioned, the Contractor hereby covenants, to execute, and complete the Works and remedy the defects therein, in conformity in all respects with the provisions of the Contract.

4. The Employer hereby covenants to pay the Contractor in consideration of the execution and completion of the Works and remedying the defects therein, the Contract price at the times and in the manner prescribed in the Conditions of Contract and as stated in the Cash flow contained in the Appendix A to the Contract Agreement.

IN WITNESS whereof the parties hereto have hereunder set their respective hands and seals on the day and year first above written in accordance with the Laws of the Sultanate of Oman.

Signed by a duly authorized Signatory for and on behalf of the Government of the Sultanate of Oman.

.....
.....

Signed by a duly authorized Signatory for and on behalf of the

Contractor.....

Attested pursuant to Royal Decree No. 48/76

.....

MINISTER RESPONSIBLE FOR FINANCIAL AFFAIR

.....

Under-Sectary of Ministry of Financial Affaires

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APPENDIX A TO FORM OF CONTRACT

Note: with the exception of the items for which the Employer's requirements have been inserted, the following information must be completed before the Tender is submitted:

- (*) Delete where not applicable
- (**) To be inserted by the Employer
- (***) To be inserted by the Contractor.

Sr. No.	References	Clause	
1	*** Contractor name& Address	1.1.2.1	
2	**Employer name & address	1.1.2.4	MINISTRY OF HOUSING AND URBANPLANNING P.O.BOX No.173, Muscat Postal Code-100 Sultanate of Oman
3	**Engineer's name and address	1.1.2.6	Al Manarah Engineering Consultancy P.O.Box No.2966, Salalah Postal Code-211 Sultanate of Oman
4	**Commencement Date: * as instructed by the Engineer. * within (14) days from the Effective Date	1.1.3.2	14 days from the date of LOI.
5	**Time for Completion of the Works 4 months for Mobilization + 24 months for Construction	1.1.3.10	4 months for Mobilization + 24 months for Construction
6	**Time for Completion of Section /Sections of the Works as defined in the specification: Section 1:.....days Section 2days	1.1.3.10	N/A
7	**Defects Notification Period (365) days	1.1.3.4	One year from completion certification.
8	**Accepted Contract Amount Omani Rial, in words	1.1.4.1	
9	** Electronic transmission systems:	1.3.a	By email/ by hardcopy submission.
10	** Ruling Language: Arabic/ English.	1.4	English.
11	Correspondence and Communication in :English / Arabic	1.4	English & Arabic.
12	Drawings Arabic/ English.	1.4	English.
13	** Time for access to the Site	2.1.1	(14) Day before the commencement date.

**CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING
UNITS AND MAINTENANCE WORKS FOR THE EXISTING (32) HOUSES FOR THE
MINISTRY OF HOUSING & URBAN PLANNING AT HALANIYAT ISLAND**

14	** Amount of Performance Bond: (%) of the Accepted Contract Amount	4.2.1	20% of contract value.
15	** A detailed time program to the Engineer: within (14) days from the Commencement Date.	8.3	(14) days
16	** Penalty amount for each day or part a day: Rial Omani (0.1%), in words.	8.7.1	0.1% of the contract value per day
17	** Penalty amount for each day or part a day: Rial Omani (), in words.	8.7.2	N/A
18	Maximum amount of delay Penalties (15 %) of the Accepted Contract Amount	8.7.3	15%
19	** Amount for excluded engineering Supervision Services for every day or part of day: Rial Omani (), in words.	8.8	As supervision contract amount per day
20	** Estimated Quantities for executing the Work	12.1	Estimated quantity shall apply to Substructure and External workand Storm network and flood protection and roads
21	** Actual Quantities for executing the Work.	12.2	Actual and correct quantity shall apply to Super Structure works, Finishes.
22	Evaluation of any additional	12.5.3a 12.5.3.b 12.5.3.c	N/A
23	** Percentage to be added for overheads and profit (.....%) of the actual amounts	13.4.1 (b)	N/A
24	** Advance payment : (20%) of the Accepted contract Amount excluding sums Contingencies.	14.2.1	20% of the Contract value.
25	** Repayment amortization of advance payment: (20%) of the Total Interim Payment Certificate.	14.2.4	(20%) of Engineer's Determination
26	** Percentage of Retention: (10%) of Total Payment Certificates.	14.3.2 (c)	10% of gross interim certificate
27	** Limit of Retention: (5%) of the Contract Price.	14.3.2 (c)	5% of contract price
28	** Plant and Materials for payment when shipped en route to the site: (80%) of Engineer's Determination.	14.5.1 (b)	N/A
29	** Plant and Materials for payment when delivered to the site: (80%) of Engineer's Determination.	14.5.1 (c)	(80%) of Engineer's Determination
30	** Minimum amount of Interim Payment Certificates (%) of the Accepted Contract Amount.	14.6.2	150,000/-
31	** Interest Rate:(%)of the unpaid amount.	14.9.1	N/A

**CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING
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32	** Yearly Cash Flow (Percentage of Contract Value) 20...%. 20...%. 20...%. 20....%.	14.11.1	2024 30.0%	2025 40.0%	2026 27.5%	2027 2.5%
33	** Periods for submission of insurance: a-evidence of insurance 7 days. b-relevant policies 14 days.	20.1.4	a) (7) days before commencement data b) (14) days before commencement data			
34	** Insurance Value of Works and contractor's Equipment :Rial Omani (), in word.	20.2	Contract Value + 15%			
35	** Maximum amount of deductibles for insurance against Employer's risks: Rial Omani (),in words.	20.2.4 (d)	NIL			
36	** Limit per occurrence of not less than Rial Omani (50,000), in words.	20.3.2	50,000/=			
37	** Final Settlement of Disputes: * Litigation. *Local Arbitration. *International Arbitration.	22.3	Litigation			
		22.4				

IN BLOCK CAPITALS

**On this Day of datedof
.....Year 20...**

Name:

Signature:

in capacity of:

And duly authorized to sign Tenders for and on behalf of

.....

Address:

Witness Name:

Signature:

Address:

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING
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Appendix “B” to the Form Contract Summary of Contract Value		
Schedule No.	Description	R.O
1.	BILL NO 01 PRELIMINARIES	
2.	BILL NO 02 DAY WORKS	
3.	BILL NO 03 PROVISIONAL SUMS	
4.	BILL NO 04 NEW HOUSING UNITS	
5.	BILL NO 05 EXTERNAL WORKS AND EXTERNAL SERVICES	
6.	BILL NO 06 MAINTENANCE WORKS FOR THE EXISTING HOUSING UNITS	
7.	BILL NO 07 PROTECTION AND STORM WATER DRAINAGE	
Total Contract Value		
	Value of Preliminaries.	
	Value of Measured works (Bill No 04 to 06)	
	Value of Provisional sums.	
	Value of Day works.	
	Value of Contingencies (10%)	
	The value of VAT must be included in item rates and will not be considered separately as per Ministry of Financial regulations	
Total Contract Value		

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING
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FORM OF TENDER BOND

Tender Bond No

By this Bond wewhose
address ishereby
guarantee Messrs
of and
hold at your disposal the sum of R.Obeing two per cent (2) % of
the Tender Value from until
a total period of ninety (90) calendar days.

This bond shall be free of interest and payable in cash on your first written demand in the event
of the Tenderer either withdrawing his Tender within a period of Ninety (90) calendar days
from the date for the receipt of Tenders or failing to provide a Performance Bond within Ten
(10) working days for local Contractors, or Twenty (20) working days for international
Contractors of acceptance of the Tender whichever date is earlier without any reference to or
contestation on behalf of the Contractor.

This bond should be returned to us upon its expiry or upon fulfillment of our undertaking
whichever is the earlier.

Authorized Signatories

(To be issued by a locally registered bank)

Ministry of Housing & Urban Planning
P.O.BOX 173
Muscat
Postal Code 100

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING
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FORM OF ADVANCE PAYMENT BOND

Advance Payment Bond No

Whereas Messrs.....(to be referred to hereinafter as Contractor) has been awarded a Contract datedfor the CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING UNITS AND MAINTENANCE WORKS FOR THE EXISTING (32) HOUSES FOR THE MINISTRY OF HOUSING & URBAN PLANNING AT HALANIYAT ISLAND.

for an amount of R.O.....
(Rials Omani) and in view of the fact that you shall pay to the contractor an advance amount of RO....
.....(Rial Omani.....) equivalent to 20 % of the accepted contract amount, we, Bankwhose address is
undertake by virtue of this guarantee that we shall pay to you an amount not exceeding RO....
(Rial Omani.....) upon your first written demand without reverting to the contractor or entertaining his objections.

It is understood that our liability towards you shall be reduced, corresponding to the amounts refunded to you by the contractor as specified in the certificates and payments against the said advance payment.

Validity of this bond commences on and ends on..... or till the full payment of the advance installment, whichever of the two dates fall later.

This bond shall be returned to us upon the conclusion of the period of its validity or upon the fulfillment our liability, whichever of the two materializes first.

Authorised Signatories

(To be issued by a locally registered bank)

Ministry of Housing & Urban Planning

P.O.BOX 173

Muscat

Postal Code 100

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING
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FORM OF PERFORMANCE BOND

Performance Bond No

Whereas..... (Hereinafter referred to as the Contractor) has been awarded a Contract dated for the provision of CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING UNITS AND MAINTENANCE WORKS FOR THE EXISTING (32) HOUSES FOR THE MINISTRY OF HOUSING & URBAN PLANNING AT HALANIYAT ISLAND for the value of OMR (.....) (Rials Omani.....) By this performance bond, we Bank address is are held and firmly bound to you in the sum of R.O. (Rial Omani.....) being twenty percent (20%) of the accepted contract amount.

We agree to make unconditional payment under this irrevocable bond on your first written demand without any reference to or contestation on behalf of the Contractor provided the claim is received by us on or before.....

The bond will be effective from.....and shall be valid until the final completion of the contract after which date our liability shall automatically cease.

This performance bond should be returned to us upon its expiry or upon fulfillment of our undertaking whichever is the earlier.

Authorised Signatories

(To be issued by a locally registered bank)

SECTION 7

MISCELLANEOUS FORMS

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING
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FORM NO. 1

**UP TO DATE LIST OF ALL OMANI EMPLOYEES FROM
MINISTRY OF LABOUR PRINT-OUT (STAMPED & SIGNED
FROM MINISTRY OF LABOUR)**

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING
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FORM NO. 2

**UP TO DATE LIST OF ALL EXPATRIATE EMPLOYEES FROM
MINISTRY OF LABOUR PRINT-OUT (STAMPED & SIGNED
FROM MINISTRY OF LABOUR)**

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING
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LIST OF PARTICULARS OF WORKS TO SMALL-MEDIUM ENTERPRISES (SMEs)

(To be included in the Technical Submission)

Sr. No.	Particulars of Works/Services

Notes:

1. Provide additional sheets if required.
2. The Tenderer shall propose the works to be sub-contracted to Small-Medium Enterprises (SMEs).
3. The Tenderer shall list down the particulars of works/services proposed to be sub-contracted to SMEs in total not less than ten percent (10%) of the Total Tender Value/final Contract Value.
4. The above list proposed by the Tenderer is not exhaustive and the Tenderer may add over the ten percent (10%) required.
5. Ministry of Housing & Urban Planning is not liable for any additional cost incurred by the contractor in relation to the appointments of SMEs.

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING
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LIST OF PARTICULARS OF WORKS TO SUB-CONTRACTORS/SUPPLIERS

(To be included in the Technical Submission)

Sr. No.	Particulars of Works/Services

Notes:

1. Provide additional sheets if required.
2. The Tenderer shall propose the works to be sub-contracted to sub-contractors/suppliers (local companies).
3. Ministry of Housing & Urban Planning is not liable for any additional cost incurred by the contractor in relation to the appointments of subcontractors/suppliers (local companies).

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING UNITS AND MAINTENANCE WORKS FOR THE EXISTING (32) HOUSES FOR THE MINISTRY OF HOUSING & URBAN PLANNING AT HALANIYAT ISLAND

FORM NO. 5

List of Similar Projects completed by the Contractor in the last 5* years only.

- Tenderers are required to provide the relevant experience in similar projects.
- Tenderers are required to fill the summary sheet below and to submit company brochures demonstrating the details information.
- These forms to be submitted for the **Contractor** and the major **sub-Contractors**.

List of Similar Projects completed by the Contractor in the last 5* years only.										
Name of the Contractor										
Role in this Tender										
No.	Name of the project	The client / & Contact No.	The Consultant / & Contact No.	Contract amount (OMR)	Contract duration	Start of project	Original Project completion	Extension of time if granted	Date of completion	Scope of the Contractor

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING UNITS AND MAINTENANCE WORKS FOR THE
EXISTING (32) HOUSES FOR THE MINISTRY OF HOUSING & URBAN PLANNING AT HALANIYAT ISLAND

FORM NO.

List of All Projects undergoing by the Contractor

- Tenderers are required to fill the summary sheet below and to submit company brochures demonstrating the details information.
- These forms to be submitted for the **Contractor** and the major **sub-Contractors**, if any.

List of All Projects undergoing by the Contractor .										
Name of the Contractor										
Role in this Tender										
No.	Name of the project	The client / & Contact No.	The Consultant / & Contact No.	Contract amount (OMR)	Contract duration	Start of project	Original Project completion	Extension of time if granted	Date of completion	Scope of the Contractor

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING UNITS AND MAINTENANCE WORKS FOR THE
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FORM NO.

LIST OF ALL PRODUCTS AND MATERIALS TO BE USED IN THE PROJECT

The Tenderer must list below all products and materials to be used in the project. If the material/product is made in Oman, give the name of the manufacturer. If the material/product is foreign, indicate whether it will be obtained from local market or from foreign market and give your reasons for not using Omani materials or products.

No.	Name of Material/Product	Omani Material/Product: Manufacturer(s)	Foreign Material/Product		Reasons for not using Omani materials/products
			Local Market	Foreign Market	

NB. Provide additional sheets if required.

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FORM NO. 8

MATERIAL APPROVAL SHEET (MAS)

Project	:			
Tender No.	:			
Contractor	:			
MAS No.	:	Manufacturer (Local Only) :		
MAS Name	:	Supplier (GCC or Foreign)* :		
BOQ Ref.	:	Time Required At Site :		
Spec. Ref.	:	B.S. Ref.	:	
Drg. Ref.	:	Sample Attached	:	Yes ☐ No ☐
		Certificate Attached	:	Yes ☐ No ☐
		Assurance of Delivery on Time	:	Yes ☐ No ☐

REMARKS :
Signature : _____ Name : _____ Date :
Stamp :

ENGINEER :
Above Information given by Contractor is Correct : _____ Yes _____ No _____
Required Information :

1. _____
2. _____
3. _____

MATERIAL : Recommended/ Rejected

Recommended with comments:

Signature : _____ Name : _____ Date :

IN CASE THE PRODUCT RECOMMENDED IS NON-OMANI. Give Reason

We confirm that there is no local manufacturer available for the proposed product, and no alternate local product can meet the requirement for the duty conditions in Oman.

Signature : _____ Name : _____ Date :

Stamp :

EMPLOYER :
MATERIAL : Approved _____ / Rejected _____

Approved with additional comments :
1. _____
2. _____
3. _____

Signature : _____ Name : _____ Date :
Stamp :

*** This will be considered if local manufacturer for the specified or alternate product is not available.**

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING UNITS AND MAINTENANCE WORKS FOR
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FORM NO. 9

LIST OF LOCAL PRODUCTS, MATERIALS AND GOODS Omani Products. Materials and Goods List to be used in project

No	Name of Item (Description)	Brand / Factory	Unit (No.,L.Meter, Square Meter, C. Meteretc.)	Anticipated Unit Rate Quantity	Total Anticipated Amount
1					
2					
3					
4					
5					

Total Amount Anticipated for Omani Products

Notes:

1. The Bidders should list all the Omani products, materials and goods to be used in the project.
2. Additional Sheet(s) can be provided.
3. Any Tender not accompanied with this Form No. 10 will be rejected.

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING UNITS AND MAINTENANCE WORKS FOR
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FORM NO. 10

LIST OF FOREIGN PRODUCTS, MATERIALS AND GOODS SOURCED FROM LOCAL MARKET (OMANI SUPPLIERS) Foreign

Products, Materials and Goods List to be used in project from local suppliers

No	Name of Item (Description)	Brand / Factory	Unit (No.,L.Meter, Square Meter, C. Meteretc.)	Anticipated Unit Rate Quantity	Total Anticipated Amount
1					
2					
3					
4					
5					
6					

Total Amount Anticipated for Foreign Products purchased locally from Omani suppliers.

Notes:

1. The Bidders should list all the Foreign products, materials and goods to be used in the project and supplied by Omani Suppliers.
2. Additional Sheet(s) can be provided.
3. Any Tender not accompanied with this Form No. 11 may be rejected.

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EXISTING (32) HOUSES FOR THE MINISTRY OF HOUSING & URBAN
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FORM NO. 11
LIST OF FOREIGN PRODUCTS, MATERIALS AND GOODS SOURCED FROM INTERNATIONAL MARKET
(INTERNATIONAL SUPPLIERS)

Foreign Products, Materials and Goods List to be used in project from international Suppliers

No	Name of Item (Description)	Brand / Factory	Unit (No.,L.Meter, Square Meter, C. Meteretc.)	Anticipated Unit Rate Quantity	Total Anticipated Amount
1					
2					
3					
4					
5					
6					

Total Amount Anticipated for Foreign Products purchased internationally from international suppliers

Notes:

- 1. The Bidders should list all the Foreign products, materials and goods to be used in the project and to be supplied from international suppliers directly.**
- 2. Additional Sheet(s) can be provided.**
- 3. Any Tender not accompanied with this Form No. 12 may be rejected.**

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING UNITS AND
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SECTION 8

LIST OF TENDER DRAWINGS

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING UNITS AND
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ARCHITECTURAL DRAWINGS (REFER TO VOLUME IV)

<u>S. NO.</u>	<u>DRG.REF.</u>	<u>DESCRIPTION</u>
1		
2		
3		
4		
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CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING UNITS AND
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STRUCTURAL DRAWINGS (REFER TO VOLUME IV)

<u>S.NO.</u>	<u>DRG.REF.</u>	<u>DESCRIPTION</u>
1		
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4		
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6		
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CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING UNITS AND
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MEP Drawings (REFER TO VOLUME IV)

S.No	DRAWING NO.	DOCUMENT/ DRAWING TITLE	REVISION
1			0
2			0
ELECTRICAL DRAWINGS			
3			1
4			1
5			1
6			1
7			1
8			1
9			1
10			0
MECHANICAL DRAWINGS			
1			1
2			1
3			1
4			1
5			1
6			0
7			0
8			0
9			
10			0
PLUMBING DRAWINGS			
1			
2			
3			
4			
5			
6			
7			
8			
9			
10			
FIRE PREVENTION DRAWINGS			
1			
2			
3			
4			
5			

CONSTRUCTION, COMPLETION AND MAINTENANCE OF PROPOSED (20NOS) HOUSING UNITS AND
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SECTION 9

SECTION 9A – CONCERNED PERMITS AND APPROVALS

SECTION 9B – LOCATION MAP, KROOKY, MULKIYA

FORM NO. 13 - COMMITMENT

Company name:

P.O Box:

Postal Code:

Email:

Tender Board Law issued through the Royal Decree no. (36/2008) and Law for the Protection of Public Funds and Avoidance of Conflicts of Interest issued through Royal decree no.(112/2011);

- a- Accordingly we pledge that the owner of the company or his closest relatives up to the second degree is not working in (specify the name of client/entity)**

In addition, all information and data given by the bidder are correct and we bear any legal consequences in the event of incorrect information or data.

- b- Disclosure for working of the owner of the company / institution or one of their relatives up to the second degree in the and thus in line with Royal Decree No. (112/2011) Law for the Protection of Public Funds and Avoidance of Conflicts of Interest.**

- 1.**
- 2.**
- 3.**

Name of the Company owner /Authorized to sign:

Stamp:

اسم الشركة:

ص.ب:

الرمز البريدي:

البريد الإلكتروني:

إستنادا إلى المادة رقم (٦) من قانون المناقصات الصادر بالمرسوم السلطاني رقم (٢٠٠٨/٣٦) وإلى قانون حماية المال العام وتجنب تضارب المصالح والصادر بالمرسوم السلطاني رقم (٢٠٢٢/٢٢٢).

أ- عليه نتعهد بأن صاحب الشركة أو أحد أقاربه حتى الدرجة الثانية لا يعمل لدى وزارة

_____ كما أن جميع البيانات الواردة في إستمارة بيانات مقدم العطاء صحيحة ونتحمل أي تبعات قانونية في حالة وجود بيانات غير صحيحة.

ب - الإفصاح عن عمل صاحب الشركة / المؤسسة أو أحد أقاربهم وحتى الدرجة الثانية بوزارة _____ وذلك حماية للمال العام بموجب المرسوم السلطاني رقم (٢٠٢٢/٢٢٢).

-٢

-٢

-٣

اسم صاحب الشركة او المخول بالتوقيع:

التوقيع:

الختم

SITE VISIT DECLARATION

We hereby confirm that we have visited and carefully examined the Sites and satisfied ourselves as to the nature of all existing roads or other means of transport or communications and as to possible interruptions thereto and as to access to and from the Site. We have made inquiries, examined, and satisfied ourselves as to the nature and location and survey of the island contour of conditions affecting our obligations under the Contract. We understand the conditions of existing 32 houses and utilities and loading and unloading for the material and all requirements for the accommodations for labuors camp, We have made local and independent inquiries as to storms, prevailing winds, climatic conditions, and other similar matters. We have satisfied ourselves with the sources and means of obtaining adequate supplies of skilled and unskilled persons and all materials and equipment required for carrying out obligations under the Contract. We have considered the possible effects whilst carrying out of the Contract that may be caused by the breakdown of communications or because of storms, floods or adverse weather conditions. We have acquainted ourselves as to the laws and regulations, which are applicable to the work to be performed by us under the Contract, and we have verified that any permits, approvals and authorizations if required, can be obtained. We have obtained all the necessary information of all matters whatsoever which may affect our execution of the Contract.

Company:

Company Representative:

Date:

Signature:

“Engineer’s” Representative:

Signature: